		(1) The plaintiff. … (j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: . . . … (2) A one-thousand-five-hundred-dollar ($1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar ($2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c). . . " (Civ. Proc. Code § 871.26.) Defendant filed its responsive pleading on 7/11/25. Thus, Defendant had the right to take Plaintiff's initial deposition by 11/7/25. To date, Plaintiff has not complied with section 871.26, subdivision (c)(1). Plaintiff's opposition fails to establish good cause for failing to comply. Plaintiff objected to the initially noticed August 2025 deposition, cancelled the agreed upon February 2026 deposition, failed to respond to Defendant's attempts to reschedule the February 2026 deposition, and failed to inform Defendant that Plaintiff's counsel lost contact with Plaintiff in February 2026. As a result, Defendant was forced to file the instant motion. Plaintiff's counsel had ample opportunity to comply with section 871.26, subdivision (c)(1), before losing contact with Plaintiff in February 2026. Plaintiff's counsel did not file a motion to be relieved as counsel until 7/30/26, which is not scheduled for hearing until 3/4/27. Plaintiff's counsel should have informed Defendant that they lost contact with Plaintiff and filed their motion to be relieved closer to February when they lost contact. Doing so likely would have avoided the need to file the instant motion. The motion is granted. Plaintiff is ordered to appear at the initial deposition as outlined in Code of Civil Procedure section 871.26 within 10 calendar days. Plaintiff's counsel is ordered to pay monetary sanctions to Defendant in the amount of $1,500 within 15 business days.
11	***25-01529245*** ***Webb vs. Orange County Solar, Contracting Services Inc.***	**Motion to Compel Arbitration** The Motion to Compel Arbitration by Defendants Orange County Solar Contracting Services, Inc. and Vincent Curcie is GRANTED. Plaintiff's objections (ROA 34) are overruled. In the Complaint filed 11/25/25, Plaintiff alleges claims arising from his employment with Defendant between March 2024 – August 2025.

		Defendants move to compel arbitration of Plaintiff's complaint pursuant to the four-page Mutual Dispute Resolution Agreement attached as Exhibit A to the Torres Declaration dated March 11, 2024, which states in part the following: "Other than as provided in this Agreement, the Company and I agree that any controversy, dispute, or claim that could otherwise be raised in court ("Covered Claim") that the Company has against me or the I have against the Company, its current or former officers, directors, members, employees, vendors, clients, customers, agents, parents, subsidiaries, affiliated companies, successors, or assigns, shall be settled exclusively by binding arbitration rather than in court. It is the parties' intent that all claims between them covered by this Agreement are to be resolved through binding arbitration to the fullest extent permitted by law, not an administrative proceeding or court. However, if an arbitration award would be rendered ineffectual without provisional relief including, but not limited to, preliminary injunctions or temporary restraining orders, either party may request such relief from a court of competent jurisdiction to preserve the status quo pending arbitration." (Ex. A, § II.) Plaintiff opposes the motion on the grounds that Defendant has not established Plaintiff knowingly consented to the arbitration agreement the agreement was "imposed through surprise and oppression." (Opp., pp. 2-3.) Legal Standard: "General principles of contract law determine whether the parties have entered a binding agreement to arbitrate." (Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC (2012) 55 Cal. 4th 223, 236.) "Generally, an arbitration agreement must be memorialized in writing." (Id.) "A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement," but "[a] signed agreement is not necessary, however, and a party's acceptance may be implied in fact[.]" (Id.) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (Id.) "[U]nconscionability has both a 'procedural' and a 'substantive' element, the former focusing on 'oppression' or 'surprise' due to unequal bargaining power, the latter on 'overly harsh' or 'one-sided' results." (Armendariz v. Found. Health Psychcare Servs., Inc. (2000) 24 Cal. 4th 83, 114.) "The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (Id.) "But they need not be present in the same degree." (Id.) "Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness

or unreasonableness of the substantive terms themselves." (Id.) "In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (Id.) The Court should consider five factors to determine whether an arbitration agreement is enforceable in the employment context. (Id. at 102.) The agreement must: 1) provide for a neutral arbitrator; 2) provide for more than minimal discovery; 3) require the arbitrator to issue a written decision; 4) provide for the same remedies that

would otherwise be available to the employee in court; and 5) not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. (Id.)

California courts have held an individual's failure to read or understand the terms of an arbitration agreement does not alone render it unconscionable. (See Brookwood v. Bank of America (1996) 45 Cal.App.4th 1667, 1674.) Failure to provide a copy of the rules or clearly identify the rules so that the employee could locate them may give rise to a finding of some unconscionability. (See Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 245 [finding moderate level of procedural unconscionability based on adhesive nature and failure to attach or identify governing rules in employment context].)

"It is well settled that adhesion contracts in the employment context, that is, those contracts offered to employees on a take-it-or-leave-it basis, typically contain some aspects of procedural unconscionability. Assuming the Agreement here is adhesive in character, this adhesive aspect of an agreement is not dispositive. Courts have observed that when, as here, there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high. (Peng v. First Republic Bank (2013) 219 Cal.App.4th 1462, 1470 [cleaned up].)

Application:

Although the arbitration agreement attached as Defendant's Exhibit A does not contain Plaintiff's signature, Defendant's administrator Ms. Torres declares Defendant's records reflect that Plaintiff electronically signed the agreement as part of the onboarding process on 3/11/24. (¶ 14.)

Plaintiff does not deny signing the March 2024 arbitration agreement. Rather, he declares he signed the onboarding documents without being told he could negotiate and did not understand he was separately agreement to arbitration or given the arbitration rules. (¶¶ 2-6.) He further agreed to arbitration when accepting Defendant's offers for the Sales Team Lead position and Sales Consultant position at later dates, but declares he did not intend to affirm a prior arbitration agreement at that time and the arbitration rules were not provided. (¶¶ 7-10.) When signing the August 2025 Sales Consultant agreement, Plaintiff stated he

		wanted to have an attorney review it but was pressured to sign it "under duress" by Defendant's management. (¶¶ 13-15.) Plaintiff has not shown the March 2024 arbitration agreement was invalid. Plaintiff electronically consented to the detailed agreement, which specifies the arbitration shall be conducted pursuant to JAMS Employment Arbitration rules. Plaintiff has not shown the JAMS rules are substantively unconscionable under California law. Although Plaintiff later reaffirmed his consent to arbitration when signing documents accepting other positions within the company, the circumstances of those documents do not demonstrate unconscionability as to the initial agreement to arbitrate, which had already been executed at hiring. Defendant has demonstrated the existence of a binding arbitration agreement which is not unconscionable under California law. Plaintiff has failed to demonstrate there was no mutual consent or that unconscionability renders the agreement invalid. Therefore, the motion is granted.
12	***24-01422867*** ***Zelaya vs. Nissan North America, Inc.***	**Motion to Be Relieved as Counsel of Record** Moving attorney has not shown he has complied with the requirements of California Rules of Court, rule 3.1362. It does not appear a proof of service of the form Notice and Motion (MC-051) or Declaration (MC-052) has been filed. The motion of Prestige Legal Solutions, P.C. to be relieved as counsel for plaintiff Veronica Zelaya is CONTINUED to August 27, 2026 at 10:00 a.m., in Department C33. Prestige Legal Solutions, P.C. is ordered to re-serve all moving papers along with a proof of service within five court days before the new hearing date. Moving attorney to give notice of new hearing date.